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Rommel Herrera Ramirez v. Essex Property Trust, Inc., et al.

Thursday, September

10, 2026

TENTATIVE ORDER SUSTAINING

IN PART AND GRANTING IN PART DEFENDANT ESSEX PROPERTY TRUST, INC.'S DEMURRER

TO AND MOTION TO STRIKE PORTIONS OF PLAINTIFF'S SECOND AMENDED COMPLAINT [Res. No. -3910]

I.

BACKGROUND

The second

amended complaint alleges that demurring/moving Defendant, Essex Property Trust, Inc., and its co-defendants illegally evicted Plaintiff from his residential rental unit in violation of various tenant protection and anti-discrimination laws. Plaintiff asserts the following claims:

1.

Wrongful Eviction

2.

Violation of L.A. Just Cause Ordinance

3.

Defective Notice to Pay or Quit

4.

Forcible Entry/Detainer

5.

Violation of Civil Code section 789.3

6.

Source-of-Income Discrimination (Government Code)

7.

Source-of-Income Discrimination (L.A. Municipal Code)

8.

Bane Act (Civ. Code, § 52.1)

9.

Conversion

10.

Breach of Quiet Enjoyment

11.

Intentional Infliction of Emotional Distress

12.

Rosenthal FDCPA Violation

Defendant

Essex Property Trust, Inc., Plaintiff's former landlord, demurs to all causes of action in Plaintiff's complaint and moves to strike several paragraphs of Plaintiff's prayer for relief.

II.

LEGAL STANDARDS

Where

pleadings are defective, a party may raise the defect by way of a demurrer. (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) A demurrer for sufficiency tests whether the complaint alleges facts sufficient to constitute a cause of action. (Cal. Code Civ. Proc. § 430.10; Young v. Gannon (2002) 97 Cal.App.4th

209, 220.) When considering a demurrer, a court reads the allegations stated in the challenged pleading liberally and in context, and “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) Put differently: for purposes of demurrer, the court treats all facts alleged – but only the facts alleged – in the complaint as true. (Picton v. Anderson Union High School District (1996) 50 Cal.App.4th 726, 732.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

“The court may, upon a motion made pursuant to Section 435 [notice of motion to strike whole or part of complaint], or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Id. § 436 (a).) Irrelevant matters include immaterial allegations that are not essential to the claim or those not pertinent to or supported by an otherwise sufficient claim. (Id., § 431.10.) The court may also “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Id. § 436 (b).)

III.

DISCUSSION

A. First Cause of Action for Wrongful Eviction

“ ‘[A] person in peaceable possession of real property may recover, in an action sounding in tort, damages for injuries to his person and goods caused by the forcible entry of one who is, or claims to be, the lawful owner or possessor’ [Citations.]” (Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1039.)

As alleged, Defendant filed an unlawful detainer action against Plaintiff in May 2025. (SAC, ¶ 30.) The parties signed a stipulated judgment for possession on November 4, 2025. (Id., ¶ 41.) However, the stipulated judgment (1) “struck through” a “pre-printed waiver of remaining claims” and (2) “expressly provided ... : ‘Plaintiff may bring premature lockout claims in the event of a forcible

lockout.’ ” (Id., ¶¶ 41-42.)

According to the SAC, on March 9, 2026, Defendant’s agent “request[ed] that Plaintiff schedule a ‘pre move out inspection’ of the Premises.” (Id., ¶ 43.) Later that morning, “Plaintiff returned to the Premises to find the lockout already in progress”, with no Sheriff present, and without having received five days’ notice of the lockout pursuant to Code of Civil Procedure section 715.010. (Id., ¶¶ 43-45.)

Plaintiff alleges Defendant ousted him from the property while he was still in lawful possession, without proper use of legal process, and in violation of the terms of the parties’ stipulated unlawful detainer judgment. This is sufficient to state a claim for wrongful eviction. (See Zimmerman v. Stotter (1984) 160 Cal.App.3d 1067, 1074-1075 [wrongful eviction plaintiff did not litigate “the right [to possession], but the abuse of that right”]; cf. Needelman v. DeWolf Realty Co., Inc. (2015) 239 Cal.App.4th 750, 758-761 [wrongful eviction unavailable because of waiver in stipulated unlawful detainer judgment].)

The demurrer to the first cause of action is overruled.

B. Second and Third Causes of Action for Violation of Just Cause Ordinance and Defective Notice to Pay or Quit

As to the third cause of action, Plaintiff’s alleged violations of the unlawful detainer statutes do not themselves create an independent cause of action for damages. Those alleged defects concern the validity of the underlying unlawful detainer proceedings and could have been raised as defenses in that action. Plaintiff may not recast alleged procedural defects in the unlawful detainer proceeding as a separate statutory damages claim. Accordingly, the demurrer to the third cause of action is sustained without leave to amend.

The Court reaches a different conclusion as to the second cause of action, which alleges violations of the Los Angeles Just Cause for Eviction Ordinance (JCO). Unlike provisions that merely supply defenses to an unlawful detainer action, the JCO expressly creates a private

civil remedy. LAMC section 165.07 provides that, in addition to permitting a tenant to raise a landlord's noncompliance as an affirmative defense in an action for possession, "any landlord who violates this article shall be liable in a civil action to the affected tenant." The ordinance further authorizes compensatory damages, civil penalties, attorney fees and costs, and other appropriate relief.

Plaintiff alleges specific violations of duties imposed by the JCO. Among other things, he alleges that Defendant failed to provide him with the required written notice of JCO protections and failed to post the required notification in an accessible common area, as required by LAMC section 165.05(A). Plaintiff further alleges that Defendant failed to file the termination notice with the Los Angeles Housing Department as required by section 165.05(B)(5). These are affirmative requirements imposed by the JCO, and section 165.07 expressly provides a civil remedy to an affected tenant for a landlord's violation of the article.

That some of these alleged violations may also have provided defenses in the underlying unlawful detainer proceeding does not, standing alone, eliminate the separate civil remedy expressly created by section 165.07. To the extent Plaintiff seeks to relitigate the validity of the stipulated judgment itself or matters necessarily resolved by that judgment, different preclusion or collateral-attack principles may apply. But Plaintiff's allegations of independent violations of the JCO are not subject to demurrer merely because those violations could also have been raised in the unlawful detainer proceeding. Accordingly, the demurrer to the second cause of action is overruled.

C. Fourth

Cause of Action for Forcible Entry/Detainer

An action for forcible detainer is governed by Code of Civil Procedure section 1160, which provides in relevant part:

"(a) Every person is guilty of a forcible detainer who either:

(1) By force, or by menaces and threats of violence, unlawfully holds and keeps the possession of any real

property, whether the same was acquired peaceably or otherwise.

(2) Who ... during the absence of

the occupant of any lands, unlawfully enters upon real property, and who, after demand made for the surrender thereof, for the period of five days, refuses to surrender the same to such former occupant.”

The SAC does not clearly allege that

Defendant presently and unlawfully holds possession of the property against Plaintiff's current right to possession. To the contrary, Plaintiff repeatedly refers to a stipulated judgment pursuant to which he appears to have surrendered his right to possession. That judgment, however, is not attached to or incorporated into the SAC. Nor does it appear to have been included as Exhibit I to either the original or first amended complaint, as the SAC alleges.

The distinction is material. A forcible

detainer claim concerns Defendant's unlawful withholding of possession from a plaintiff entitled to possession. If Plaintiff no longer claims a present right to possession and instead seeks damages based upon a completed dispossession or eviction, the allegations do not state a distinct claim for forcible detainer and instead appear to overlap with Plaintiff's wrongful eviction claim. The SAC does not presently allege facts sufficient to establish the former. Accordingly, the demurrer to the fourth cause of action is sustained with leave to amend.

D. Fifth

Cause of Action for Violation of Civil Code section 789.3

Plaintiff adequately alleges a claim for

violation of Civil Code section 789.3, which provides in relevant part:

“[A] landlord shall not, with intent to terminate the occupancy under any lease or other tenancy or estate at will, however created, of property used by a tenant as his or her residence, willfully: (1) Prevent the tenant from gaining reasonable access to the property by changing the locks or using a bootlock or by any other similar method or device[.]”

Plaintiff alleges that Defendant, his

landlord, changed the locks to the property with the intent to terminate

Plaintiff's occupancy. Plaintiff further alleges that, at the time the locks were changed, he retained a right to occupy the premises pursuant to a written agreement, which he identifies as the stipulated judgment. Although the precise nature of Plaintiff's continued right of occupancy is not entirely clear from the SAC, section 789.3 is not limited to occupancy under a lease, but applies to "any lease or other tenancy or estate at will, however created." Plaintiff's allegations are therefore sufficient at the pleading stage to state a claim under section 789.3. The demurrer to the fifth cause of action is overruled.

E. Sixth and Seventh Causes of Action for Source-of-Income Discrimination

In support of his discrimination claims, Plaintiff contends only that Defendant first accepted, then refused income-based rental assistance. This is insufficient to show the discriminatory intent necessary for Plaintiff's sixth or seventh causes of action. Plaintiff cites a settlement with the California Civil Rights Department in which Defendants admitted no liability. (See Compl., Exh. A, ¶ 3.) This is insufficient. Plaintiff does not allege facts sufficient to state a claim for discrimination. The demurrer to the sixth and seventh causes of action is sustained with leave to amend.

F. Eighth Cause of Action for Violation of the Bane Act (Civ. Code, § 52.1)

Civil Code section 52.1 authorizes an individual whose exercise or enjoyment of rights secured by federal or state law has been interfered with, or attempted to be interfered with, to bring a civil action for damages. (Civ. Code, § 52.1(c).) To state a claim, however, the alleged interference must be accomplished "by threats, intimidation, or coercion." (Id., subd. (b).)

Plaintiff alleges that Defendant interfered with his possessory and tenancy rights by unlawfully changing the locks and excluding him from his unit. The Bane Act, however, "requires a showing of threatening conduct independent from the alleged interference or violation of a civil right." (Animal Protection & Rescue League, Inc. v. County of Riverside (2025) 111 Cal.App.5th 914, 922, quoting Doe v. State of California (2017) 8 Cal.App.5th 832, 842-843.) Here, the alleged lockout constitutes the asserted violation of Plaintiff's rights; the SAC does not allege separate threats, intimidation, or

coercion used to accomplish or further that violation. The alleged lockout itself therefore cannot satisfy both elements of the claim. Accordingly, the demurrer to the eighth cause of action is sustained with leave to amend.

G. Ninth

Cause of Action for Conversion

A cause of action for conversion requires allegations of “(1) the plaintiff’s ownership or right to possession of personal property; (2) defendant’s disposition of the property inconsistent with plaintiff’s rights; and (3) resulting damages.” (Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.)

Plaintiff adequately alleges each element.

He alleges that his personal property remained inside the unit when Defendant unlawfully took possession of the premises and, in doing so, also took possession and control of Plaintiff’s personal property. These allegations sufficiently plead Plaintiff’s right to possession of the personal property, Defendant’s exercise of control over it inconsistent with Plaintiff’s rights and resulting damages. The demurrer to the ninth cause of action is overruled.

H. Tenth

Cause of Action for Breach of the Covenant of Quiet Enjoyment

It is unclear whether Plaintiff may state a claim based on the covenant of quiet enjoyment where his right to possession depended on a stipulated judgment that is not included with his complaint, and not necessarily on the underlying lease. His tenth cause of action also arguably duplicates his claims for wrongful eviction and illegal lockout (his first and fifth). The demurrer to the tenth cause of action is sustained with leave to amend.

I. Eleventh

Cause of Action for Intentional Infliction of Emotional Distress

Plaintiff has stated a claim for intentional infliction of emotional distress. He alleges Defendant illegally ejected him from his home without proper notice while aware that Plaintiff suffered from an illness that required a consistent treatment regimen and was assisted by at least one emotional support animal. (See SAC, ¶¶ 52-58.) The

Court finds this sufficient to describe intentional extreme, outrageous conduct perpetrated with knowledge it would cause Plaintiff extreme distress. (See *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 921 [elements].) The demurrer to the eleventh cause of action is overruled.

J. Twelfth

Cause of Action for Unfair Debt Collection Practices

Under the Rosenthal Act, a “debt collector” is a person who, in the ordinary course of business, regularly engages in “debt collection,” meaning acts or practices undertaken in connection with the collection of consumer debts. A “consumer debt,” in turn, must arise from a “consumer credit transaction”—a transaction in which a natural person acquires property, services, or money on credit primarily for personal, family, or household purposes. (*Davidson v. Seterus, Inc.* (2018) 21 Cal.App.5th 283, 295.)

Plaintiff alleges that Defendant maintains a unit that, in the ordinary course of its business, collects debts owed by former tenants. Those allegations, however, do not establish that the particular debt Defendant allegedly sought to collect from Plaintiff constitutes a consumer debt within the meaning of the statute. Although Plaintiff appears to allege that he owed money under the stipulated judgment, he does not allege facts showing that this obligation arose from property, services, or money extended to him on credit by Defendant as part of a consumer credit transaction. The mere existence of a monetary obligation arising from the stipulated judgment does not, without more, satisfy that requirement. Plaintiff therefore fails to allege a consumer debt subject to the Rosenthal Act or, correspondingly, the FDCPA. The demurrer to the twelfth cause of action is sustained with leave to amend.

K. Motion

to Strike

Defendant’s motion to strike is DENIED AS MOOT for paragraph G of Plaintiff’s prayer for relief, which follows from a cause of action to which the demurrer has been sustained.

Defendant’s motion to strike is DENIED for paragraph H of Plaintiff’s prayer for relief. Plaintiff has alleged malice or

oppression sufficient to sustain a claim for punitive damages based on Defendant's malicious disregard of his rights as a tenant, repeatedly ratified after the illegal lockout by Defendant's failure to restore Plaintiff to possession or allow him to promptly retrieve his belongings.

Defendant's motion to strike is GRANTED

WITH LEAVE TO AMEND for paragraphs L and M of Plaintiff's prayer for relief.

Particularly given the breadth of the Court's ruling on Defendant's demurrer, the basis for Plaintiff's broad requested relief is unclear.

Defendant's motion to strike is DENIED for

paragraph 46 of Plaintiff's complaint. The allegation is related to several of Plaintiff's claims that survive demurrer and it is not improper for inclusion in his pleading.

IV.

CONCLUSION

Defendant's demurrer is OVERRULED as to

Plaintiff's first, second, fifth, ninth, and eleventh causes of action. Defendant's demurrer is SUSTAINED WITH LEAVE TO AMEND as to Plaintiff's fourth, sixth, seventh, eighth, tenth, and twelfth causes of action. Defendant's demurrer is SUSTAINED WITHOUT LEAVE TO AMEND as to Plaintiff's third causes of action.

Defendant's motion to strike is DENIED as

to paragraph 46 of Plaintiff's SAC and paragraph H of his prayer for relief. Defendant's motion to strike is DENIED AS MOOT as to paragraph G of Plaintiff's prayer for relief. Defendant's motion is GRANTED WITH LEAVE TO AMEND as to paragraphs L and M of Plaintiff's prayer for relief.

Plaintiff is ordered to file a third

amended complaint within 30 days of this Order. The Court notes that exhibits, to the limited extent they are necessary or appropriate, may not be included by reference to prior iterations of Plaintiff's filings.